

Federal Maritime Commission

Docket No. 18-04

Falcone Global Solutions, LLC

v.

Maurice Ward Networks, Ltd. d/b/a Maurice Ward Group:

Maurice Ward & Co., BV,; and Maurice Ward & Co., S.R.O

**REPLY IN SUPPORT OF RESPONDENTS' MOTION FOR MORE DEFINITE
STATEMENT (WITH INCORPORATED BRIEF)**

COME NOW Respondents Maurice Ward Networks, Ltd., Maurice Ward & Co., BV and Maurice Ward & Co., S.R.O., through their undersigned counsel, and file this Reply Brief in Support of their Motion for More Definite Statement showing the Administrative Law Judge (“ALJ”), as follows:

Summary of Argument

Despite Plaintiff’s argument to the contrary, it has filed a lawsuit against three separate and distinct corporate entities. Plaintiff must provide a more definite statement as to why it has named Maurice Ward & Co., S.R.O. as a Respondent by describing the violations of this specific entity (as opposed to conclusory allegations against all “Respondents”). The failure to provide notice to Maurice Ward & Co., S.R.O. of its allegedly improper conduct violates the pleading standard of 46 C.F.R. § 502.67 and is proper grounds for requiring a more definite statement.

Argument and Authorities

Federal courts have held that a motion for more definite statement requires “the exercise of that sound and considered discretion committed unavoidably and properly to the Trial Judge as

he presides over the continuous process of adjudication from commencement of the litigation through pleadings, pretrial discovery, trial, submission and decision.” *Mitchell v. E-Z Way Towers, Inc.*, 269 F.2d 126, 130 (5th Cir. 1959). Under Fed. R. Civ. P. 12(e), which includes the same requirements for pleading as 46 C.F.R. § 502.67, the judge must determine whether the complaint is such that “a party cannot reasonably be required to frame a responsive pleading.” *Id.* (quoting *Glus v. Brooklyn Eastern District Terminal*, 359 U.S. 231, 79 S.Ct. 760, 763, 3 L.Ed.2d 770, 774 (1959)).

If a plaintiff fails to identify which defendant is responsible for the complained of conduct, a motion for a more definite statement is the proper vehicle for a defendant to use to seek clarification of the allegations against it. *See Cheeks v. Fort Myer Constr. Corp.*, 71 F. Supp. 3d 163, 169 (D.D.C. 2014) (granting motion for more definite statement where plaintiff’s complaint “lacks specificity about plaintiffs’ claims and which defendants are alleged to have engaged in the various violations”). The court in *Cheeks* held that, even under a basic notice pleading standard, “Defendants are due information about the types of violations allegedly suffered by plaintiffs, facts related to the events that form the basis of their claims, *which defendants committed each violation*, and when such events occurred.” *Id.* (emphasis added). An amended pleading with the required information is necessary where a plaintiff’s pleading contains “conclusions concerning numerous persons, organizations and agencies” as such a pleading does not comply with the requirements of Fed. R. Civ. P. 8. *Id.* (quoting *Brown v. Califano*, 75 F.R.D. 497, 499 (D.D.C.1977)).

A review of the Complaint shows that there are no specific allegations directed toward Maurice Ward & Co., S.R.O. Further, none of the exhibits submitted by Claimant reference Maurice Ward & Co., S.R.O. Instead, the Complaint lumps all Respondents together in the factual allegations which is tantamount to “conclusions concerning numerous . . . organizations.” *Cheeks*,

71 F. Supp. 3d at 169. Such conclusory allegations are prohibited and are proper grounds for requiring a more definite statement which sets out which defendants are responsible for which violations. Anything less fails to meet the required pleading standard. The complete lack of allegations of any wrongdoing levied against Maurice Ward & Co., S.R.O. as an individual respondent makes the pleading so vague that Maurice Ward & Co., S.R.O. cannot reasonably respond to the pleading.

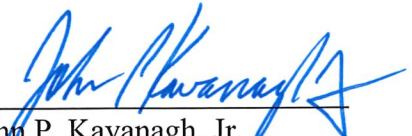
In their response, Plaintiff has attempted to circumvent its pleading requirements by ignoring the corporate formation of separate and distinct entities. However, there are no allegations in the Complaint which indicate that such corporate forms have been used improperly and should be ignored. *See, e.g., Subway Equipment Leasing Corp. v. Sims*, 994 F.2d. 2010, 2018 (5th Cir. 1993) (describing application of alter ego doctrine and piercing the corporate veil as “truly exceptional doctrines, reserved for those cases where the officers, directors or stockholders utilized a corporate entity as a shame to perpetrate a fraud, to shun personal liability, or to encompass other truly unique citations.”). Accordingly, Plaintiff should be required to amend its Complaint and provide allegations specifically against Maurice Ward & Co., S.R.O. rather than conclusory allegations against all Respondents so that Maurice Ward & Co., S.R.O. can properly frame a responsive pleading based on the alleged conduct.

Conclusion

The complete failure to identify or explain the role of Maurice Ward & Co., S.R.O. in the underlying transaction requires Plaintiff to provide a more specific statement, pursuant to 46 U.S.C. § 502.67.

Undersigned counsel, per 46 C.F.R. § 502.2 (f)(3), certifies that this e-filed copy is a true and correct copy of the paper original, and that the paper signed original and five (5) copies are being filed with the Secretary of the Commission.

Respectfully submitted this the 24th day of July, 2018.



John P. Kavanagh, Jr.
Alabama Bar No. ASB-1011-A56J

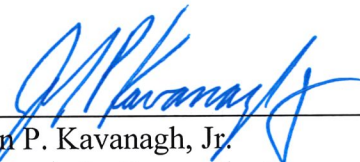
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CERTIFICATE OF SERVICE

I hereby certify that I have this the 24th day of July, 2018, served a copy of the foregoing document upon all parties of record by electronic mail (email).



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